

24STCV33648 24STCV33648

County: los-angeles

Division: Civil Law and Motion

Department: 400

Hearing date: 2026-09-04

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Case Number: 24STCV33648 Hearing Date: September 4, 2026 Dept: 400

Tentative Rulings on Motlons in Limine in Rincon v.

General Motors 24STCV33648

PLAINTIFF'S MIL #1: Seeks

to preclude argument that Plaintiff failed to pursue 3rd party
dispute resolution as an alternative to this litigation.

TENTATIVE RULING: DENIED. The availability of a certified arbitration
program is a defense to any claim for civil penalties based simply on a
violation of the law. CC section 1794(e).

The parties have not addressed whether
any program established by GM would meet the requirements of Section 1793.22

PLAINTIFF'S MIL #2:

Seeks to preclude evidence that Plaintiff abused or poorly maintained
the vehicle.

TENTATIVE RULING: DENIED. Evidence that Plaintiff abused or failed to
maintain the vehicle is a defense under CC section 1794.3. Plaintiff contends there is no evidence of
such a failure but the trial has not commenced.

The Court will not pre-judge the absence of evidence on amotion in
limine heard pre-trial.

PLAINTIFF'S MIL #3:

Seeks to preclude evidence that Plaintiff never made a pre-suit request
to repurchase.

TENTATIVE RULING:

DENIED. While it is true that

Plaintiff need not make a specific request that the vehicle be repurchased in order to trigger the Defendant's obligation to repurchase, it is also true that Defendant would not know of the concern unless it was communicated. The Court will consider an instruction that a specific request need not be made to impose a duty to repurchase, but that does not necessarily mean that all communications are irrelevant.

PLAINTIFF'S MIL #4:

Seeks to preclude GM from offering testimony from a "PMK" regarding topics noticed by Plaintiff to cover at a PMK deposition but for which no witness was provided.

TENTATIVE RULING:

DENIED. While Plaintiff sought testimony from a GM witness on various topics, objections were made to the notice and Plaintiff did not follow up with a motion to test whether the objections were valid. In the absence of an order that GM produce a witness, there is no basis to exclude a witness for GM's failure to withdraw objections.

PLAINTIFF'S MIL #5:

Seeks to preclude expert testimony for GM's failure to produce a the expert for deposition.

TENTATIVE RULING: ARGUE.

The parties exchanged correspondence and notices about taking the GM expert's testimony, but it was initiated late in the process and the deposition still has not occurred. The Court is inclined to order that the deposition be taken on a set date in the next week as a condition of allowing the expert to testify.

DEFENDANT'S MIL #1:

Seeks to preclude argument based on the "Golden Rule."

TENTATIVE RULING:

GRANT. The exclusion of argument that Plaintiff should not ask the jury to put themselves in his shoes, or treat him as they want to be treated, is a familiar rule in jury trials and will be enforced.

DEFENDANT'S MIL#2

Seeks to preclude evidence of potential issues with this vehicle which Plaintiff did not experience.

TENTATIVE RULING:

GRANT. Only those issues which Plaintiff experienced are appropriate subjects of evidence, not unrelated issues experienced by other users.

DEFENDANT'S MIL #3:

Seeks to preclude references to similar complaints from other owners of the same make and model vehicle.

TENTATIVE RULING:

DENIED WITHOUT PREJUDICE Evidence

that other owners of the same vehicle experienced similar concerns potentially is relevant to issues of notice, whether the vehicle was misused and GM's good faith in handling customer complaints.

The Court needs to hear the proposed evidence to assess its relevance to issues in the case.

DEFENDANT'S MIL #4

Seeks to preclude evidence of non-recoverable damages.

TENTATIVE RULING:

GRANT The Plaintiff may only recover certain categories of damages.

Evidence of non-recoverable damages is obviously irrelevant. This ruling does not address which items are recoverable and which are not.

DEFENDANTS MIL #5

Seeks to preclude evidence of design defects in the vehicle.

TENTATIVE RULING: DENIED. The Plaintiff's burden is to show that a defect in the vehicle substantially impaired its use, value or safety. It is not clear to the Court why evidence of design defects is not relevant to that question.

DEFENDANT'S MIL #6

Seeks to preclude argument regarding the absence of a GM corporate representative at trial.

TENTATIVE RULING: GRANTED The presence or absence of a corporate representative is not relevant to any matter being tried. Even if it had some value, to raise that issue would then require an explanation from GM which could include a description of the burden being imposed by lemon law cases, which would be an unnecessary side-show.

DEFENDANT'S MIL #7 Precludes
the introduction of evidence not produced in discovery.

TENTATIVE RULING: DENIED
WITHOUT PREJUDICE . This MIL is too broad as it seems to imply that a party must produce everything it might use at trial even with being asked for it. If an item has been withheld after it was requested, there might be a basis to exclude it. But that must be determined on a case by case basis.

DEFENDANT'S MIL #8
Would preclude any reference to so-called "lemon" laws.

TENTATIVE RULING:
DENIED The Court will not preclude the use of the term "lemon law" to describe the law generally at issue in this case. This term is well established in the vernacular and reference to it will not prejudice anyone.